DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FOURTH DISTRICT

AARON SHANNON,
Appellant,

v.

STATE OF FLORIDA,
Appellee.

No. 4D2026-1145

[October 14, 2026]

Appeal of order denying rule 3.801 motion from the Circuit Court for the Nineteenth Judicial Circuit, Martin County; Elizabeth Metzger, Judge; L.T. Case No. 432022CF000549CFAXMX.

Aaron Shannon, Graceville, pro se.

James Uthmeier, Attorney General, Tallahassee, and Luke R. Napodano, Senior Assistant Attorney General, West Palm Beach, for appellee.

PER CURIAM.

Aaron Shannon appeals from the order denying his Florida Rule of Criminal Procedure 3.801 motion seeking additional jail credit. As the records incorporated into the court's order do not conclusively refute Shannon's claim, we reverse.

In Martin County, Shannon was tried and convicted of driving with a license suspended as a habitual traffic offender and resisting an officer without violence. The trial court sentenced Shannon concurrently to five years in prison for the driving offense and one year in jail for the resisting offense. The court awarded 347 days of jail credit.

Shannon filed a timely rule 3.801 motion, claiming he was entitled to an additional 120 days of jail credit. Specifically, Shannon alleged that in June 2022, he was arrested in Palm Beach County pursuant to a warrant issued in the underlying case and held in the Palm Beach County Jail until October 2022. In denying Shannon's motion, the trial court adopted the State's response and its record attachments. This appeal follows.

Rule 3.801 provides that "[a] court may correct a final sentence that fails to allow a defendant credit for all of the time he or she spent in the county jail before sentencing." Fla. R. Crim. P. 3.801(a). "Pursuant to Florida Rule of Criminal Procedure 3.801[], which incorporates Florida Rule of Criminal Procedure rule 3.850[], the circuit court was required to attach records which conclusively refuted the defendant's motion seeking additional jail credit" to dispose of the motion on the record without a hearing. *Williams v. State*, 141 So. 3d 686, 687 (Fla. 4th DCA 2014) (citation modified).

Here, the records attached to the trial court's order do not explain why Shannon was not, or should not have been, credited time for the days spent in jail between June 2022 and October 2022. Accordingly, the records do not conclusively refute Shannon's claim.

Accordingly, we reverse the trial court's order denying Shannon's motion and remand for further proceedings.

Reversed and remanded.

MAY, LEVINE and LOTT, JJ., concur.

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Not final until disposition of timely-filed motion for rehearing.